

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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PATRICK DAWKINS, AS THE PARENT AND
NATURAL GUARDIAN OF J. D., A MINOR UNDER THE
AGE OF 18,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER JOHN DOE
(A FICTITIOUS NAME BECAUSE HIS IDENTITY IS
UNKNOWN) AND POLICE OFFICER RODRIGUEZ OF
THE 71ST PRECINCT, BOTH INDIVIDUALLY AND IN
THEIR CAPACITY AS POLICE OFFICERS,

Defendants.

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SUMMONS

Index No.

Date Purchased:

Plaintiff designates Kings
County as the place of
trial.

The basis of the venue is
Kings County is the place
where the cause of action
arose.

To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve
a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of
appearance, on the Plaintiff's Attorney with twenty (20) days after the service of this summons,
exclusive of the day of service (30) days after the service is complete if the summons is not
personally delivered to you within the State of New York; and in case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
October 18, 2022

/s/ ROYCE RUSSELL

Royce Russell, Esq.
R-SQUARE, ESQ. PLLC.
Attorneys for the Plaintiff
112 West 34th Street 18 Fl.
New York, New York 10120
(718) 785-8890

Defendants' addresses:

City of New York
Office of the Corporation Counsel
100 Church Street, 4th floor
New York, New York 10007

The New York City Police Dept.
New York City Police Department
One Police Plaza
New York, N.Y. 10007

Police Officer Rodriguez
71st Pct
c/o New York City Police Department
One Police Plaza
New York, N.Y. 10007

Police Officers John Doe
c/o New York City Police Department
One Police Plaza
New York, N.Y. 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
PATRICK DAWKINS, AS THE PARENT AND
NATURAL GUARDIAN OF J. D., A MINOR UNDER THE
AGE OF 18,

VERIFIED COMPLAINT
Index No.

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER JOHN DOE
(A FICTITIOUS NAME BECAUSE HIS IDENTITY IS
UNKNOWN) AND POLICE OFFICER RODRIGUEZ OF
THE 71ST PRECINCT, BOTH INDIVIDUALLY AND IN
THEIR CAPACITY AS POLICE OFFICERS,

Defendants.

-----X

Plaintiff, Patrick Dawkins on behalf of J.D., by his attorney, Royce Russell, Esq. of the law firm of R-SQUARE, ESQ. PLLC., as and for a Verified Complaint alleges as follows:

PARTIES

1. Upon information and belief and at all times hereinafter mentioned, the Defendant, the City of New York, hereinafter referred to as "CITY" was and still is a Municipal Corporation duly organized and existing under, and by virtue of the laws of the State of New York.
2. Upon information and belief and at all times hereinafter mentioned, Defendant City, its agents, servants and/or employees operated, maintained and controlled the New York City Police Department (hereinafter respectively referred to as the "NYPD") including all the Police Officers therein.
3. Upon information and belief, Police Officer Rodriguez of the 71st Pct., at all times hereinafter mentioned and on the 31st day of October, 2021, was employed as a Police Officer by the City and/or NYPD and at all relevant times set forth below acted in the capacity as Police Officer and employee of the City and/or NYPD.
4. Upon information and belief, Police Officer Rodriguez, at all times hereinafter mentioned and on the 31st day of October, 2021, was employed as a Police Officer by the City and/or

NYPD, and at all relevant times set forth below acted in the capacity as a Police Officer and an employee of the City and/or NYPD.

5. Upon information and belief, Police Officer John Doe, at all times hereinafter mentioned and on the 31st day of October, 2021, was employed as a Police Officer by the City and/or NYPD, and at all relevant times set forth below acted in the capacity as Police Officer and employee of the City and/or NYPD. Police Officer John Doe is hereinafter referred to as “John”, named herein in a fictitious capacity as his identity is presently unknown all times hereinafter mentioned.
6. Hereinafter, the Police Officers present at the location set forth below are collectively referred to as “Officers and/or Defendants”.
7. At all relevant times hereinafter mentioned, Plaintiff J.D., hereinafter referred to as “J.D.” and/or “Plaintiff,” is a minor teen residing at 460 East 93rd Street, Brooklyn, NY 11212.

STATEMENT OF FACTS

8. The incident set forth below occurred in the vicinity of Albany Avenue and Midwood Street in the County of Kings within the State of New York, hereinafter referred to as “the location”, on October 31, 2021, at approximately 12:30 am-1:00 am.
9. On October 31, 2021 at approximately 12:30 am-1:00 am, the Plaintiff was lawfully at the location in a parking lot sitting with friends in what appeared to be an abandoned zip car.
10. Plaintiff and friends exited the zip car and then observed an unmarked police car approaching.
11. Plaintiff and friends then ran out of the parking lot. Plaintiff ran because his friends ran.
12. The Defendant Police Officers did not exit their vehicles or say anything to the Plaintiff prior to him running or while he was running.
13. Plaintiff stopped running some blocks down on Albany Street.
14. Contemporaneously with the Plaintiff stopping, Police Officers Rodriguez and John stopped their car in front of the Plaintiff.
15. Plaintiff recognized the unmarked police car to be the same car he observed in the parking lot.

16. Defendant Rodriguez exited the unmarked police car, approached the Plaintiff and struck the minor Plaintiff in the left eye and temple area.
17. Defendant Rodriguez never said anything to Plaintiff prior to striking him. Defendant Rodriguez struck the Plaintiff with a closed fist while holding a metal handheld Flashlight.
18. Plaintiff was knocked unconscious as he fell to the concrete ground. When the Plaintiff regained consciousness, he was restrained by Defendant Rodriguez who had his knee on Plaintiff's neck. The Plaintiff was already handcuffed as he laid on the concrete with the Defendant's-Rodriguez knee on his neck.
19. Plaintiff was eventually transported to Midwood Street where he was seated on the ground. The Plaintiff, although still dizzy, recalled seeing approximately twenty (20) other officers as he was questioned.
20. Plaintiff was illegally detained and searched while at Midwood Street and then again at the 71st Pct. The Plaintiff remained handcuffed as he was detained in a room without medical treatment.
21. Plaintiff eventually received medical treatment by an EMT/EMS employee who determined that his injuries required hospitalization. Plaintiff was then transported to Kings County Hospital in handcuffs and he remained in handcuffs for the next 8 hours while receiving medical treatment for his injuries.
22. Plaintiff received 12 stitches to his left eye and temple area.
23. Plaintiff was handcuffed and transported back to the 71st Pct. where he was illegally detained for another 2 hours before being released to his parent/father, Patrick Dawkins.
24. Plaintiff was never charged criminally. Plaintiff did not commit any crimes and was totally innocent of any wrongdoing.
25. As a result of the Defendants' misconduct, J.D. suffered headaches days later and cannot look at any bright lights without pain and/or migraines.
26. J.D.'s arrest, imprisonment, detention and the physical contact were all without just cause or provocation, and said actions were offensive to J.D., unprivileged and without his consent.
27. All aforementioned conduct was committed by the City of New York, their agents, servants or employees, while acting within the scope of their employment.

28. The City, their agents, servants or employees intended to confine J.D. who was conscious of said confinement and did not consent thereto, and the confinement was not otherwise privileged, all without just right, probable cause and without grounds thereof.
29. The City, their agents, servants and employees as aforementioned committed a battery/assault upon the Plaintiff, without just cause or justification, and in an excessive manner and force with the intention to cause physical contact and did in fact cause contact and serious injuries to J.D.'s mind and body.
30. J.D. was aware of the threat of imminent harm and unconsented contact and actually feared it while the Officers had the apparent ability to cause said unlawful and unconsented contact and harm, and actually cause it to occur.
31. The Notice of J.D.'s Claim and Notice of Intention to sue for damages eliciting the nature of claim, the date of, the place where and the manner in which the claim arose were duly served upon the Comptroller of the Defendant City on or around December 6, 2021.
32. That a 50(h) hearing was held on February 16, 2022.
33. That more than 30 days have elapsed since the Notice of Claim and Intention to Sue has been served upon the Defendants and the said Defendants have neglected or refused to make any adjustment or payment thereof.
34. That this action is commenced within one year and 90 days after the cause of action arose.
35. It is hereby alleged, pursuant to CPLR §1603, that this action is exempt from the operation of CPLR §1601 from the operation of CPLR §1601, by reason of one or more of the exemptions provided in CPLR §1602.

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF
AGAINST ALL DEFENDANTS FOR FALSE DETENTION AND FALSE ARREST, THE
PLAINTIFF ALLEGES:**

36. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "35" with the same force and effect as if more fully and at length set forth herein.
37. That on the 31st day of October 2021, at the approximate time of 12:30 am-1:00 am, at or near the "location," the Plaintiff was handcuffed and placed under arrest by the Defendant Officers, their agents, servants and/or employees without just cause or grounds and held

against his will under full force of arms. Plaintiff was photographed, fingerprinted and searched.

38. That said arrest was caused by the Defendant Officers, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, and based on an illegal seizure and search of the Plaintiff, when the Defendant Officers lacked cause to believe that the Plaintiff committed, or was about to commit a crime or was guilty of any crimes.
39. The Plaintiff was wholly innocent of all criminal charges and did not contribute in any way or manner to his arrest and imprisonment by the Defendant Officers, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely against his will.
40. That the Defendant Officers, their agents, servants and/or employees, as set forth above, intended to seize, search, and arrest the Plaintiff; that the Plaintiff was conscious of the arrest and confinement; the Plaintiff did not consent to the arrest and confinement; and the arrest was not otherwise privileged.
41. That by reason of the aforesaid false detention, false arrest, the Plaintiff was subjected to great indignity, humiliation, pain and great distress of mind and body, loss of freedom and the said Plaintiff has been otherwise damaged.
42. That by reason of the aforesaid, the Plaintiff has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF
AGAINST ALL NAMED DEFENDANTS FOR FALSE IMPRISONMENT:**

43. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "42" with the same force and effect as if more fully and at length set forth herein.
44. That beginning on or about the 31st day of October 2021, at approximately 12:30 am - 1:00 am at or near the "location" until the Plaintiff was released, the Defendant Officers, their agents, servants and/or employees imprisoned the Plaintiff handcuffed against his will at Kings County Hospital as he was handcuffed by the Defendant Officers without any just cause or grounds during his medical treatment.

45. That said imprisonment was caused by the Defendant Officers, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds or causes to believe that the Plaintiff was guilty of any crimes.
46. The Plaintiff was wholly innocent and did not contribute in any way or manner to his arrest, imprisonment and detention by the Defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest, imprisonment and detention entirely against his will.
47. That the Defendants, their agents, servants and/or employees, as set forth above, intended to confine the Plaintiff; the Plaintiff was conscious of the confinement; he did not consent to the confinement; and the confinement was not otherwise privileged.
48. That the Plaintiff was confined against his will until he was released.
49. That by reason of the aforesaid false arrest, imprisonment and detention, the Plaintiff was subjected to great indignity, humiliation, loss of freedom and loss of hours at school, and the said Plaintiff has been otherwise damaged.
50. That by reason of the aforesaid, the Plaintiff has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF FOR
BATTERY AND ASSAULT, THE PLAINTIFF ALLEGES:**

51. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "50" with the same force and effect as if more fully and at length set forth herein.
52. That commencing on the 31st day of October 2021, at the time of 12:30 am-1:00 am at "the location", the Defendants Police Officers Rodriguez and John, while acting within the scope of their employment as police officers and as agents for the Defendant the City and NYPD, without just cause or provocation illegally pat-down/searched the Plaintiff, battered and assaulted the Plaintiff.
53. Upon information and belief, the Officers had absolutely no reason or just cause to detain, batter and/or assault the Plaintiff.
54. The battery, and physical contact was not privileged.

55. The battery took place while the Plaintiff had committed no crime.
56. That the Defendants, their agents, servants and/or employees, including the unknown police officers, acting as agents on behalf of the Defendant City and/or NYPD and within the scope of their employment, intentionally and willfully battered the Plaintiff, in that they had the real or apparent ability to cause imminent harm or offensive bodily contact and intentionally did an act which threatened to and did cause such contact to the Plaintiff.
57. That said acts caused apprehension of such offensive contact to the Plaintiff and the Defendants caused such battery/assault in and about his face, temple, body and limbs.
58. That by reason of the aforesaid intentional battery and assault, the Plaintiff suffered offensive contact and/or psychological injuries to his body and mind, and was otherwise damaged.
59. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF
FOR NEGLIGENCE AGAINST THE "CITY", THE PLAINTIFF ALLEGES:**

60. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "59" with the same force and effect as if more fully and at length set forth herein.
61. That the City and/or NYPD were at all relevant times hereunder, negligent in the testing, analyzing, screening, hiring, investigating, training, retaining, promotion, supervision, monitoring, disciplining and/or assigning of its officers, including the Defendants named herein.
62. That as a result of their negligence, the above-named Plaintiff was falsely detained, illegally seized, illegally searched, falsely arrested, falsely imprisoned and had his constitutional and civil rights violated.
63. That by reason of the aforesaid, the Plaintiff, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF
AGAINST ALL NAMED DEFENDANTS FOR 42 U.S.C. §1983 VIOLATIONS,
THE PLAINTIFF ALLEGES:**

64. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "63 with the same force and effect as if more fully and at length set forth herein.
65. By the aforesaid acts, the Defendant Officers individually and collectively violated the Plaintiff's right to privacy under the First and Fourteenth Amendments, to have his person and property be free of illegal searches and seizures under the 4th and 14th Amendments to the United States Constitution, to be free from discrimination based on race, thereby giving rise to a cause of action pursuant to 42 USC §1983.
66. The conduct and actions of the named Defendant Police Officers acting under color of law in seizing the Plaintiff, and upon information and belief in searching the Plaintiff, in battering the Plaintiff, in intimidating the Plaintiff, and in falsely detaining the Plaintiff was done intentionally, maliciously and/or with a reckless disregard for the natural and probable consequences of their acts, was done without lawful justification, and was designed to and did cause specific and serious bodily, mental and emotional harm, pain and suffering in violation of the Plaintiff's Constitutional rights as guaranteed under 42 U.S.C. §1983, et seq.
67. Each of the Defendant Police Officers' actions, individually and collectively, deprived the Plaintiff of his rights including, but not limited to, the right to privacy of his person and/or property; under the First and Fourth Amendments guaranteeing protection against unlawful seizure of their persons under the Fourth and Fourteenth Amendments, and Title 42 U.S.C. §1983 et seq.
68. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks compensatory and punitive damages, costs, attorneys' fees, and expert fees as provided by 42 U.S.C. Sections §1983 and §1988, and such other relief as to the court may seem just and proper.

**AS AND FOR A SIXTH THROUGH SEVENTH CAUSES OF ACTION: FOR
VIOLATIONS OF PERSONAL CONSTITUTIONAL RIGHTS UNDER 42 U.S.C. §§
1983, 1985 AND 1986 AGAINST THE CITY OF NEW YORK**

69. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "68" with the same force and effect as if more fully and at length set forth herein.

70. That on or about the 31st day of October 2021 at approximately 12:30 am - 1:00 am at or near the "location," the Officers were present thereat as part of their regular and official employment as Police Officers for the Defendant City.
71. Plaintiff was lawfully and properly thereat when the Officers acting as agents, servants and/or employees of the Defendant City forcibly stopped, seized and searched the Plaintiff absent of just cause, provocation or reason. The Plaintiff had not engaged in any criminal conduct or suspicious activity.
72. Upon information and belief, the Plaintiff was retaliated against by the Officers who illegally, seized, searched, battered, assaulted, detained, arrested and imprisoned the Plaintiff because he ran.
73. Upon information and belief, the Officers were required to fill out a stop, question and frisk report or any report verifying their actions as well as procedure in an arrest.
74. Upon information and belief, the Officers did not fill out and submit a stop, question and frisk report, or a stop question and frisk report worksheet as required.
75. Defendants failed to activate their respective body cameras to record their actions and more specifically the arrest of J.D.
76. Upon information and belief, the Officers fabricated a reason for seizing, searching, detaining, arresting, imprisoning and forcibly assaulting the Plaintiff.
77. Further, the other named Officers present at the Plaintiff's arrest, failed to report the false arrest.
78. Likewise, when the Defendant Officers were abusive to the Plaintiff, no officer intervened or reported the misconduct as required by the New York City Patrol Guidelines.
79. Upon information and belief, to date,] no disciplinary action has been taken against the offending Officers for engaging in said conduct or for failing to intervene, stop it or report it or have their body cameras activated at the time of the incident concerning J.D.
80. That in order to cover up their misconduct, the Officers individually and/or collectively, conspired to file false police reports, give false statements and/or sign a false Criminal Court Complaint for the purpose of falsely detaining, falsely imprisoning, falsely arresting the Plaintiff.
81. That said acts constituted an illegal seizure of the Plaintiff and deprived the Plaintiff of his rights and liberties as set forth in the 4th and 14th Amendments of the Constitution of the

United States and of the State of New York and under 42 U.S.C. Sections 1983 and/or 1986.

82. That said acts constituted acts of cruel and unusual punishment and deprived the Plaintiff of his rights and liberties as set forth in the 8th and 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Sections 1983, 1985 and/or 1986.
83. That said acts constituted acts that violated the Plaintiff's freedom of speech as protected under the 1st and 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Sections 1983, 1985 and/or 1986.
84. That said acts constituted acts of fabricating evidence, filing false reports and giving false statements, and such acts deprived Plaintiff of his rights and liberties as set forth in the 5th and 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Sections 1983, 1985 and/or 1986.
85. That Plaintiff, as an African American male, was deprived of his right to equal protection under the law and was targeted and his rights violated based on his race, a violation of the Equal Protection Clause under the 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Sections 1983, 1985 and/or 1986.
86. That the Officers conspired by and through their conduct, including, among other things, their overt acts, their failure to intervene, stop and report, and the falsification of reports and evidence to deprive or hinder the Plaintiff's right to justice, and to injure him.
87. Upon information and belief, Police Officers are rarely prosecuted, disciplined or investigated for providing false statements, filing false reports, failing to intervene or report misconduct, and/or making false arrests.
88. The Officers herein conspired to deprive the Plaintiff of equal protection under the law and substantive due process. The City's deliberate indifference to their conduct made such violations possible.
89. That the Plaintiff's false detention, false arrest, false imprisonment, battery, assault, and violation of his constitutional rights resulted from the Defendant City's practices, policies and/or customs, and/or their deliberate indifference to patterns and/or police practices which include: excessive use of force; illegal use of police equipment; failing to follow police guidelines; failing to monitor or discipline police misconduct; failing to gather evidence when allegations of police misconduct are involved; condoning a code of silence within the police department regarding misconduct; filing resisting arrest charges to cover

up illegal use of force by police; engaging in racial profiling; failing to properly supervise, train, investigate or discipline Officers; engaging in illegal stop, question and frisks, permitting or condoning illegal stop, search and seizure of property and persons, any and/or all of the above contributing to Plaintiff's false arrest and prosecution, and injuries.

90. The Defendant Officers actions on October 31, 2021 were performed under the color of law and the policies, statutes, ordinances, rules, practices and regulations of the City of New York, and they were performing to the detriment of the Plaintiff.
91. That the Plaintiff did not commit any illegal act, either before or at the time he was falsely arrested and imprisoned, battered, assaulted, and deprived of his constitutional rights as set forth in the Constitution of the United States, particularly 42 U.S.C. Sections 1983, 1985 and 1986 and the Constitution of the State of New York.
92. That by reason of the aforesaid, the Plaintiff was deprived of his liberty, lost time at school, was battered, injured and damaged.
93. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks compensatory and punitive damages, costs, attorney's fees, and expert fees as provided by 42 U.S.C. Sections 1983, 1985 1986 and 1988, and such other relief as to the court may seem just and proper.

AS AND FOR AN EIGHTH THROUGH NINTH CAUSES OF ACTION: ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS UNDER 42 U.S.C. SECTION 1983, BY POLICE OFFICERS RODRIGUEZ AND JOHN IN THEIR INDIVIDUAL CAPACITIES AND AS AGENTS OF THE CITY OF NEW YORK, THE PLAINTIFF ALLEGES:

94. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "93" with the same force and effect as if more fully and at length set forth herein.
95. That at all times hereinafter mentioned, the Defendant Police Officer Rodriguez was employed by the Defendant City and/or the NYPD and was acting under the color of his/her official capacity and his/her acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
96. That at all times hereinafter mentioned, the Defendant Police Officer John was employed by the Defendant City and/or NYPD and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

97. That at all times hereinafter mentioned, the Defendant Officers were, both individually and collectively, acting pursuant to orders and directives from Defendant City.
98. That during all times hereinafter mentioned, the Defendants Officers, individually and/or collectively, acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of the City and/or NYPD, and engaged in the illegal conduct set forth in this Complaint to the injury of the Plaintiff, and deprived him of the rights, privileges and immunities secured to him by the Fourth, and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Sections 1983 and 1986.
99. That the unlawful and illegal conduct of the Defendants Officers deprived the Plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York:
- i. The right of the Plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States;
 - ii. The right not to be discriminated against based on the Plaintiff's race, creed, sex, or sexual orientation;
 - iii. The right to Due Process Law;
 - iv. The right to equal protection under the law; and
 - v. The right not to be subjected to cruel and unusual punishment.
100. That by reason of the aforesaid violations such as, seizure of Plaintiff's person, his false detention, battery, falsifying evidence, and discrimination, the Defendant Police Officers violated Plaintiff's rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York and laws thereto, the Officers violated 42 U.S.C. §1983.
101. That as a direct proximate result of the Officers' actions, the Plaintiff was physically and emotionally injured, and was subjected to great indignities and humiliation, pain and distress of mind and body, and was humiliated and defamed thereby.
102. That by reason of the aforesaid, the Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain.

103. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus punitive damages, costs, attorney's fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

AS AND FOR A TENTH THROUGH ELEVENTH CAUSES OF ACTION:
ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTION 1985 BY POLICE OFFICERS RODRIGUEZ AND
JOHN IN THEIR INDIVIDUAL CAPACITIES AND AS AGENTS OF THE CITY
OF NEW YORK, THE PLAINTIFF ALLEGES:

104. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "103" with the same force and effect as if more fully and at length set forth herein.

105. That at all times hereinafter mentioned, the Defendant Police Officer Rodriguez was employed by the Defendant City and/or NYPD and was acting under the color of his/her official capacity and his/her acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

106. That at all times hereinafter mentioned, the Defendant Police Officer John was employed by the Defendant City and/or NYPD and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

107. That at all times hereinafter mentioned, the Defendant Officers were, both individually and collectively, acting pursuant to orders and directives from Defendant City.

108. That during all times hereinafter mentioned, the Defendant Officers, individually and/or collectively, acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of the City and/or NYPD, and conspired to engage in the illegal conduct set forth in this complaint to the injury of the Plaintiff, and deprived him of the rights, privileges and immunities secured to him by the First, Fourth, Eighth, and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1985.

109. That the Defendant Officers conspired to deprive the Plaintiff of witnesses, evidence, a fair trial, exculpatory information and material to intimidate and threaten, to abuse, to degrade, to batter and to deprive him of due process and equal protection of the law.

110. That by reason of the aforesaid violations such as, seizure and search of Plaintiff's person, his false detention, false arrest/imprisonment, battery, assault, malicious prosecution and falsifying evidence, and discrimination, the Defendant Police Officers violated Plaintiff's rights and privileges as provided to him in the Constitution of the United States of America and provided to him in the Constitution of the State of New York, and laws thereto, the Officers violated 42 U.S.C. §1985.
111. That as a direct proximate result of the Officers' actions, the Plaintiff was detained, physically and emotionally injured, and was subjected to great indignities and humiliation, pain and distress of mind and body, and was humiliated and defamed thereby.
112. That by reason of the aforesaid, Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain.
113. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorney's fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1985 and 1988, and such other relief as to the court may seem just and proper.

AS AND FOR AN TWELFTH THROUGH THIRTEENTH CAUSES OF ACTION:
ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTION 1986 BY POLICE OFFICERS RODRIGUEZ AND
JOHN IN THEIR INDIVIDUAL CAPACITIES AND AS AGENTS OF THE CITY
OF NEW YORK, THE PLAINTIFF ALLEGES:

114. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "113" with the same force and effect as if more fully and at length set forth herein.
115. That at all times hereinafter mentioned, the Defendant Police Officer Rodriguez was employed by the Defendant City and/or NYPD and was acting under the color of his/her official capacity and his/her acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
116. That at all times hereinafter mentioned, the Defendant Police Officer John was employed by the Defendant City and/or NYPD and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

117. That at all times hereinafter mentioned, the Defendant Officers were, both individually and collectively, acting pursuant to orders and directives from Defendant, The City of New York.
118. That during all times hereinafter mentioned, the Defendant Officers, individually and/or collectively, acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of City and/or NYPD, individually and/or collectively, engaged in or conspired to engage in conduct that was illegal, and though he, she or they had the ability or power to prevent and/or aid in the preventing of the commission of the same the Officers neglected or refused to do so.
119. That the Officers, each of them could have aided and/or prevented the seizure and search of Plaintiff's person, the Plaintiff's false detention, the battery, the falsifying of evidence, and discrimination, the Defendant Officers refused or neglected to do so, and thereby violated Plaintiff's rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, the Officers violated Plaintiff's right under 42 U.S.C. §1986.
120. That as a direct proximate result of the Defendant Officers' actions, the Plaintiff was imprisoned, physically and emotionally injured, and was subjected to great indignities and humiliation, and pain and distress of mind and body and was humiliated and defamed thereby.
121. That by reason of the aforesaid, the Plaintiff was injured in mind and body, still suffers and, upon information and belief, will continue to suffer great physical and mental pain.
122. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorneys fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1986 and 1988, and such other relief as to the court may seem just and proper.

WHEREFORE, the Plaintiff demands judgment against the Defendants in a sum to be determined by the trial of fact, plus costs, attorney's fees, disbursements, legal and statutory interest and such other relief as to the court seems just and proper on the first through thirteenth causes of action, plus attorney's fees, costs, disbursements and punitive damages, and such further relief as to the court seems just and proper.

DATED: New York, New York
October 18, 2022

/S/ ROYCE RUSSELL

Royce Russell, Esq.
R-SQUARE, ESQ. PLLC.
Attorneys for the Plaintiff
112 West 34th Street 18 Fl.
New York, New York 10120
(718) 785-8890

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

That I am an attorney associated with the law firm of R-SQUARE, ESQ. PLLC., the attorney of record for the Plaintiff in the within action; that I have read the foregoing Verified Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that, as to those matters, I believe them to be true.

The undersigned further states that the reason this Verified Complaint is made by me and not by the Plaintiff is that the Plaintiff does not reside in the county within which my office is located.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiff and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
October 18, 2022

/s/ ROYCE RUSSELL
Royce Russell, Esq.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

PATRICK DAWKINS, AS THE PARENT AND NATURAL GUARDIAN OF J. D., A MINOR UNDER THE AGE OF 18,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER JOHN DOE (A FICTITIOUS NAME BECAUSE HIS IDENTITY IS UNKNOWN) AND POLICE OFFICER RODRIGUEZ OF THE 71ST PRECINCT, BOTH INDIVIDUALLY AND IN THEIR CAPACITY AS POLICE OFFICERS,

Defendants.

SUMMONS WITH VERIFIED COMPLAINT

R-SQUARE, ESQ. PLLC.
Attorneys for Plaintiff
112 West 34th Street Floor 18
New York, NY 10120
(718) 785 8890

To: City of New York
c/o Office of the Corporation Counsel
100 Church Street
New York, NY 10007

Police Officer Rodriguez
71st Pct
c/o New York City Police Department
One Police Plaza
New York, N.Y. 10007

The New York City Police Department
1 Police Plaza
New York, New York 10038

Police Officers John Doe
c/o New York City Police Department
One Police Plaza
New York, N.Y. 10007

Pursuant to 22 NYCRR 130-1.0, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: October 18, 2022

Signature

/s/ ROYCE RUSSELL
Royce Russell, Esq.

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PLEASE TAKE NOTICE

- ☐ NOTICE OF ENTRY
that the within is a (certified) true copy of a duly entered in the office of the
clerk of the within named court on
- ☐ NOTICE OF SETTLEMENT
that a of which the within is a true copy
will be presented for settlement to the HON. one of the judges of the, on